

This matter was continued from November 24, 2025 and May 14, 2026 to allow the parties to negotiate a settlement. At the last hearing, counsel advised the court that the matter was expected to resolve shortly.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

The settlement of the matter.

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**IN RE THE ESTATE OF MARCEL SALOMON ENCARNACION, DECEASED
PR25-00704**

Report of Administration; Petition for Final Distribution; First and Final Account; Request for Reimbursement of Costs; Request for Payment of Statutory Fees to Administrator; Request for Payment of Statutory Fees to Estate Attorney; and Request for Reserve (Probate Code §§ 10400, 10402, 10810, 10831, 10951, 11004, 11600 THROUGH 11640 - et. seq)

PREGRANT ORDER

The court on its own motion continues this hearing to September 16, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. Petition, item 29: The list of costs advanced by counsel includes a request for reimbursement of \$1.70 in postage paid to mail documents to the Philippines. Postage costs are not reimbursable absent extraordinary circumstances. (Solano County Local Rules, Rule 7.72(b)) What circumstances warrant judicial approval of this expense?
 2. Petition, item 30: The calculation of the statutory compensation states that the fee base is \$1,049,712.45, but it is unclear where that amount came from, as the Inventory value was \$1,055,194.96 and there are no losses on sale which would reduce the Inventory value. The petitioner shall explain.
 3. Petition, item 37: The petition states that the assets on hand equal \$1,000,801.38. This appears to be incorrect. Court Staff calculates that assets on hand are \$1,000,801.38. The petitioner shall explain.
 4. Petition, item 38: The proposed distribution appears to be incorrect. Court Staff calculates the amounts to be distributed as \$500,400.69 to each heir. The petitioner shall explain.
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